3.1 For the purposes of this Procedure, the definitions in the Convention apply and:

.1 Method means a process developed and designed to reduce the transfer of harmful aquatic organisms through ships' ballast water to meet the requirements specified under regulations B-3.1 to B-3.5 of the BWM Convention.

.2 Other Method means an alternative to a Method defined in paragraph 3.1.1 above, which provides a level of protection equivalent to the requirements specified in regulations B-3.1 to B-3.5 of the

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SOURCE: MEPC.206(62).pdf
BWM Convention.

.2 Other Method means an alternative to a Method defined in paragraph 3.1.1 above, which provides a level of protection equivalent to the requirements specified in regulations B-3.1 to B-3.5 of the BWM Convention.

4 APPLICABILITY

4.1 The Procedure applies to all Administrations, Parties to the BWM Convention and other IMO Member States, seeking approval in principle for an Other Method under regulation B-3.7 or assessing or granting approval for such Other Methods. This Procedure is also for the use of the Committee when considering approval in principle.

4.2 Equipment manufacturers wanting to seek approval for an Other Method should also consult this Procedure.

4.3 Ballast water management methods subject to regulation A-4.1 of the BWM Convention are not subject to this procedure or to regulation B-3.7.

5 APPLICATION TO THE COMMITTEE FOR APPROVAL IN PRINCIPLE OF AN OTHER METHOD

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SOURCE: MEPC.206(62).pdf
4.3 Ballast water management methods subject to regulation A-4.1 of the BWM Convention are not subject to this procedure or to regulation B-3.7.

5 APPLICATION TO THE COMMITTEE FOR APPROVAL IN PRINCIPLE OF AN OTHER METHOD

5.1 The information provided to support the application for approval in principle should be complete, of sufficient quality and in accordance with this Procedure.

5.2 The applicant for approval in principle of an Other Method should provide independently validated and/or operational proof that the Other Method being submitted:

.1 provides a level of protection at least equivalent to that provided by the requirements specified in regulations B-3.1 to B-3.5 of the BWM Convention; and

.2 is capable of providing a consistent level of protection at all times in all environments/locations.

Equivalence and benchmark criteria for an application for approval in principle of an Other Method

5.3 Applications for Other Methods should contain a fully developed independently validated approach for assessing the level of protection provided by that Other Method

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Other Method

5.3 Applications for Other Methods should contain a fully developed independently validated approach for assessing the level of protection provided by that Other Method against the transfer of harmful aquatic organisms and pathogens and its equivalence to the requirements in regulations B-3.1 to B-3.5 of the BWM Convention and the additional requirements outlined in this Procedure, as appropriate. A possible starting point for such an approach could be a comparison of the level of protection ensured by ballast water management in compliance with regulations B-3.1 to B-3.5 and the level of protection ensured by the Other Method if used on comparable ships.

5.4 Other Methods should demonstrate by risk assessment, independently validated physical and biological modelling, operational testing of this modelling and full-scale operational testing, where applicable, that the Other Method is capable of meeting at all times a level of protection that is at least equivalent to the level of protection with respect to the prevention of the transfer of harmful aquatic organisms and pathogens via discharge of

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times a level of protection that is at least equivalent to the level of protection with respect to the prevention of the transfer of harmful aquatic organisms and pathogens via discharge of ballast water compared to existing requirements. The risk assessment should be at least to the same level of rigour as stipulated in Guidelines (G7).

5.5 Applications for Other Methods should specify the benchmark against which the performance of any systems based on that particular Other Method can be measured. The benchmark would:

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.1 enable a transparent comparison by the Committee of the level of protection provided by the Other Method with that provided by the requirements in regulations B-3.1 to B-3.5 of the BWM Convention;

.2 be measurable and able to be evaluated for approval (similar to the requirements of the Convention, i.e. D-1 being a process evaluation, while D-2 is a measurable performance standard);

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.2 be measurable and able to be evaluated for approval (similar to the requirements of the Convention, i.e. D-1 being a process evaluation, while D-2 is a measurable performance standard);

.3 be verifiable by port and flag States through sampling, records or other processes (to be properly defined, list ed and technically explained/clarified, in the pertinent application, in terms of proposed verifications for flag State or port State control inspections to be carried out on board);

.4 need to be contained in the application, agreed by the Committee and then be used for consideration of approval through compliance testing by Port State Control;

.5 provide an assurance that systems based on an Other Method are providing the same level of protection for the environment as the Other Method that has received the approval in principle from the Committee; and

.6 be based on a recognized international standard, where appropriate, so long as they can be proved as equivalent to the existing requirements.

5.6 An Other Method may provide the same level of protection for the environment, human health, property or resources where:

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long as they can be proved as equivalent to the existing requirements.

5.6 An Other Method may provide the same level of protection for the environment, human health, property or resources where:

.1 the ballasting and de-ballasting process does not transfer harmful aquatic organisms and pathogens; or

.2 the ballast water discharge contains no harmful aquatic organisms and pathogens.

Sampling protocol criteria for an application for approval in principle of an Other Method

5.7 The application for an Other Method should contain a ballast water sampling and analysis protocol that should be consistent with the Guidelines for ballast water sampling (G2).

Ship and personnel safety criteria for an application for approval in principle of an Other Method

5.8 The application should include a Formal Safety Assessment or a Safety Case to ensure that the Other Method or system based on an Other Method is safe for installation on board ship and any risks to the ship's crew resulting from the system are identified and adequately addressed. This Formal Safety Assessment or Safety Case should be consistent

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on board ship and any risks to the ship's crew resulting from the system are identified and adequately addressed. This Formal Safety Assessment or Safety Case should be consistent
with part 3 of the annex to the Guidelines for approval of ballast water management systems (G8) and approved by the Administration.

6 SUBMISSION PROCESS